

Virendra v. State of U.P.

Allahabad High Court · Division Bench · 2 November 2015 · Writ-C No. 60519 of 2015 · **Writ dismissed; consumer relegated to clause 6.5.**

HEADNOTE

A domestic consumer of Kanpur Electricity Supply Corporation sought certiorari to quash a billed amount of Rs.47,166. The Division Bench treated the petition as one for quashing the electricity bill, held that paragraph 6.5 of the Electricity Supply Code, 2005 furnishes an alternative remedy, declined to entertain the writ, and dismissed it.

FACTUAL SUMMARY

Virendra, a 1 kW domestic consumer of Kanpur Electricity Supply Corporation (Book No. 5083, Connection No. 025309, Account No. G.N. 31111914), filed a writ petition in the Allahabad High Court seeking certiorari to quash that connection record and the billed amount of Rs.47,166. The Court treated the petition as one to quash the electricity bill. Counsel for the Corporation submitted that the petitioner could invoke paragraph 6.5 of the Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-to-executive-engineer-under-6.5

HOLDING

A consumer who seeks quashing of an electricity bill in a writ petition has a remedy under paragraph 6.5 of the Electricity Supply Code, 2005, and the High Court will decline to entertain the petition on that account. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE ELECTRICITY BILL OF RS.47,166

The Court did not examine the petitioner's grounds for quashing the bill. ¶ 1